

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3417

By: Strom

AS INTRODUCED

An Act relating to cities and towns; amending 11 O.S. 2021, Section 10-116, which relates to purchases and sales by city manager and competitive bidding; clarifying that council requirements shall be in addition to the provisions of the Public Competitive Bidding Act; providing for recodification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 11 O.S. 2021, Section 10-116, is amended to read as follows:

Section 10-116. A. The city manager shall contract for, purchase, or issue purchase authorizations for all supplies, materials, and equipment for offices, departments, and agencies of the city government, subject to any regulations which the council may prescribe. Every contract or purchase exceeding an amount to be established by the council shall require the prior approval of the council. The city manager may also sell or transfer to or between offices, departments, and agencies surplus or obsolete supplies,

1 materials, and equipment, subject to regulations the council may  
2 prescribe.

3 B. The council may prescribe requirements and procedures for  
4 competitive bidding. Notice and opportunity for competitive bidding  
5 shall be given before a purchase or contract for supplies,  
6 materials, or equipment is made, and before a sale of any surplus or  
7 obsolete supplies, materials, or equipment is made, in accordance  
8 with regulations the council may prescribe. The council shall not  
9 exempt a particular contract, purchase, or sale from the requirement  
10 of competitive bidding. The provisions of this subsection shall be  
11 in addition to the provisions of Section 140 of Title 61 of the  
12 Oklahoma Statutes.

13 C. The council may transfer some or all of the power granted to  
14 the city manager pursuant to the provisions of this section to an  
15 employee appointed by and subordinate to the city manager.

16 SECTION 2. RECODIFICATION 11 O.S. 2021, Section 17-115,  
17 shall be recodified as Section 141 of Title 61 of the Oklahoma  
18 Statutes, unless there is created a duplication in numbering.

19 SECTION 3. This act shall become effective November 1, 2026.  
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